

Court No. - 3

Case :- WRIT - C No. - 16659 of 2004

Petitioner :- Maula Bux

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Rajeev Kumar Srivastava

Respondent Counsel :- C.S.C., Umesh Narain Sharma

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

None appeared to press the petition in spite of repeated calls. It seems that the writ petition has become infructuous by the passage of time as such the petitioner has lost interest.

Mr. Pankaj Dubey, learned counsel for respondent No. 5, U.P. Power Corporation is present.

Therefore, the writ petition is dismissed as infructuous without imposing any cost.

Interim order, if any, stands vacated.

Order Date :- 21.9.2010

Sandeep

Court No. - 3

Case :- WRIT - C No. - 16659 of 2004

Petitioner :- Maula Bux

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Rajeev Kumar Srivastava

Respondent Counsel :- C.S.C., Umesh Narain Sharma

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

Upon being satisfied with the explanation given in the affidavit filed in support of the restoration application for recalling the order dated 21.9.2010 this application is allowed. The order dated 21.9.2010 is recalled. The writ petition is restored to its original number.

No order is passed as to costs.

Let it appear before the appropriate Bench.

The matter will not be treated as tied up or part heard with this Bench.

Order Date: 20.3.2012

IA

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

The writ petition is restored to its original number.

No order is passed as to costs.

Order Date: 20.3.2012

IA

For order see order of the date passed on the Civil Misc. Restoration Application No.308861 of 2004.

Order Date :- 20.3.2012

IA

Court No. - 21

Case :- WRIT - C No. - 16659 of 2004

Petitioner :- Maula Bux

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Rajeev Kumar Srivastava

Respondent Counsel :- C.S.C., Umesh Narain Sharma

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

Passed over on the the illness of Sri Rajiv Kumar Srivastava.

Order Date :- 5.7.2012

n.u.

Court No. - 21

Case :- WRIT - C No. - 16659 of 2004

Petitioner :- Maula Bux

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Rajeev Kumar Srivastava

Respondent Counsel :- C.S.C., Umesh Narain Sharma

Hon'ble Yatindra Singh,J.

Hon'ble Mahendra Dayal,J.

There is illness slip of counsel for the respondent. The cases of counsel for the petitioner is adjourned till 31.10.2012. List this case after 31.10.2012.

Order Date :- 25.9.2012

BBL

Court No. - 34

Case :- WRIT - C No. - 16659 of 2004

Petitioner :- Maula Bux

Respondent :- State Of U.P. & Others

Counsel for Petitioner :- Rajeev Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob.Ahmed

Hon'ble Sudhir Agarwal,J.

Hon'ble Shamsheer Bahadur Singh,J.

1. Passed over for the day on account of illness of Sri Rajeev Kumar Srivastava, learned counsel for petitioner.
2. List in the next cause list.

Order Date :- 24.5.2016

A.Kr.*

Court No. - 34

Case :- WRIT - C No. - 16659 of 2004

Petitioner :- Maula Bux

Respondent :- State Of U.P. & Others

Counsel for Petitioner :- Rajeev Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob.Ahmed

Hon'ble Sudhir Agarwal,J.

Hon'ble Mohd. Tahir,J.

1. Passed over on the illness slip of Sri Rajeev Kumar Srivastava, advocate, for the petitioner.

2. List it in next cause list peremptorily.

Order Date :- 30.5.2016

praveen.

Court No. - 34

Case :- WRIT - C No. - 16659 of 2004

Petitioner :- Maula Bux

Respondent :- State Of U.P. & Others

Counsel for Petitioner :- Rajeev Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob.Ahmed

Hon'ble Sudhir Agarwal,J.

Hon'ble Dr. Kaushal Jayendra Thaker,J.

1. This writ petition is directed against demand notice dated 28.9.2003 issued under Section 3 of U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, demanding a sum of Rs.18,12,690/- along with notice charges.

2. It is contended that petitioner earlier had an electricity connection which was disconnected on 15.12.1995 and bill, which has been received by petitioner, is for subsequent period containing a huge amount which is patently erroneous.

3. Be that as it may, admittedly under clause 6.5 of U.P. Electricity Supply Code, 2005, if there is a dispute relating to bills and arrears shown therein, remedy lies to consumer to raise such dispute before competent authority of supplier but said remedy has not been availed by petitioner in the case in hand. Further, if competent authority of supplier fails to rectify bill or consumer has some grievance, he has further Statutory remedy of filing a complaint before Electricity District Redressal Grievance Authority against whose order consumer has further remedy before Ombudsman and since all Statutory remedies, which are available and are not availed and the said authorities can look into factual dispute also, we do not find any justification to interfere with dispute of correctness of electricity bill in present writ petition by exercising extra ordinary jurisdiction under Article 226 of Constitution of India instead of relegating petitioner to avail aforesaid Statutory efficacious remedy.

5. Writ petition is, accordingly, dismissed on the ground of alternative remedy.

Order Date :- 29.11.2016

Irshad